

organization is a 501(c)(3) nonprofit public benefit corporation.) Further, no statutory duty is identified. Instead, Plaintiff again pleads a form of breach of contract, alleging that HCCC failed to utilize funds as described in the Grant Agreement. The inapplicability of Gov. Code 815.6 to a nonprofit corporation cannot be cured by amendment. The demurrer to the seventeenth cause of action is **SUSTAINED** without leave to amend.

Defendant's Demurrer as to Causes of Action 1-5 and 17 of the Fourth Amended Complaint is **SUSTAINED** without leave to amend. No proposed order was lodged as required by Local Rule 5.17(D). Defendant shall prepare the order.

9:00 a.m. Review Hearings

CARTER VS. CUSTER, ET AL.

CASE NUMBER: 25CV-0208056

This matter is on calendar for trial setting. Both sides have filed status statements which request a 90-day continuance to attempt mediation. Today's hearing is continued to **Monday, November 2, 2026 at 9:00 a.m. in Department 64** for trial setting. No appearances are necessary on today's calendar.

HEARN VS. KONDYBE, ET AL.

CASE NUMBER: 25CV-0208638

This matter is on calendar for review regarding status of responsive pleading. Defendants filed their Answer on June 3, 2026. The matter is at issue. This matter is set for trial setting on **Monday, September 21, 2026 at 9:00 a.m. in Department 64**. Plaintiff is to give notice. No appearances are necessary on today's calendar.

LEWISTON COMMUNITY SERVICES DISTRICT VS. SUDA PROPERTIES, LLC, ET AL.

CASE NUMBER: 25CV-0208034

This matter is on calendar for trial setting. The Court designates this matter as a plan II case and intends to set the matter for trial no later than December 8, 2026. Neither side has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates.

LVNV FUNDING LLC VS. ROBBINS

CASE NUMBER: 24CVG-01953

This matter is on calendar for review regarding status of the case. Notice of Conditional Settlement was filed on February 2, 2026 indicating the matter would be dismissed no later than September 24, 2026. The matter is continued to **Monday, October 5, 2026 at 9:00 a.m. in Department 64** for status of dismissal. The Court intends to dismiss the matter without prejudice on October 5, 2026 per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the hearing. No appearance is necessary on today's calendar.